

CLERK SUBMISSION PACKET

ROSARIO v. CSAA INSURANCE EXCHANGE et al.

Case No. CGC-25-631802 | Department 302 | Hon. Joseph M. Quinn

Ex parte filing: Friday, April 24, 2026 — 11:00 a.m. (LRSF 9.0(A))

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--- FILED ---

Register documents — clerk file-stamp as usual

TAB 1

Notice of Filing — Separate Statement (Motion to Deem, May 18)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF FILING — SEPARATE
STATEMENT IN SUPPORT OF
MOTION TO DEEM MATTERS
ADMITTED (CRC 3.1345)**

(Cal. Rules of Court, rule 3.1345; Code Civ. Proc.,
§§ 2033.280, 1010.6, 1013a)

Discovery Hearing:

Date: May 18, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **NOTICE**

2 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

3 PLEASE TAKE NOTICE that Plaintiff Franciscus Dylan Rosario hereby re-presents, for filing
4 and inclusion on the Court's register, the **Separate Statement in Support of Plaintiff's Motion**
5 **to Deem Matters Admitted** (the "Separate Statement") attached hereto as an indispensable com-
6 panion to Plaintiff's Motion to Deem Matters Admitted (set for hearing May 18, 2026, Dept. 302),
7 pursuant to **California Rules of Court, rule 3.1345**.

8 **1. Prior Tender and Record Status**

9 Plaintiff previously tendered the Separate Statement as component 802-TRACK1-03-SEPARATE-STATEMENT.pdf
10 within the April 22, 2026 discovery-pressure service packet served on Defendant's counsel at
11 porterscott.com. The packet was accepted for clerk filing on April 22, 2026. Upon review of
12 the Court's April 23, 2026 register, the Separate Statement did not appear as an indexed filing on
13 the docket for Case No. CGC-25-631802, notwithstanding that companion papers in the same track
14 (Notice of Motion, Memorandum of Points and Authorities, Declaration of Rosario, and Proposed
15 Order) were indexed.

16 Plaintiff re-presents the Separate Statement herewith to **perfect the record** for the May 18, 2026
17 hearing on the pending Motion to Deem Matters Admitted, and to avoid any question under CRC
18 3.1345(a)(5) as to the facial sufficiency of the motion.

19 **2. CRC 3.1345 Compliance**

20 The attached Separate Statement complies with CRC 3.1345(a)-(c) in the following respects:

- 21 1. The Separate Statement is a **separate document** from the Notice of Motion and the Memo-
22 randum of Points and Authorities.
- 23 2. For each request for admission at issue, the Separate Statement sets out, in sequence: (a) the
24 text of the request; (b) the text of the response (or, where the matter is that no response was
25 served, a statement to that effect); and (c) the factual and legal reasons for compelling the
26 response / deeming admissions.
- 27 3. The Separate Statement is self-contained and complete in itself; references to other docu-

ments are cross-referenced by paragraph.

3. Companion Papers Already on Register

- 802-TRACK1-01-NTC-DEEM-COMPEL-SANCTIONS.pdf (Notice of Motion) — on register.
- 802-TRACK1-02-MPA-DEEM-COMPEL-SANCTIONS.pdf (Memorandum of Points and Authorities) — on register.
- 802-TRACK1-04-DECL-ROSARIO.pdf (Declaration) — CRC 3.1345(a)(5) companion (re-presentation concurrent, as needed).
- 802-TRACK1-05-PROPOSED-ORDER.pdf (Proposed Order) — re-presentation concurrent, as needed.
- Fallback consolidated filing available: 802-DISCOVERY-TIERS-ABC-POS050-CONSOLIDATED-FOR-CLERK.pdf (2.96 MB, 42 pp.) containing the entire motion packet and proof of electronic service.

4. Relief Requested

Plaintiff respectfully requests that the Clerk of the Court **accept the attached Separate Statement for filing and index it on the register** for Case No. CGC-25-631802 as a companion to the Motion to Deem Matters Admitted set for hearing May 18, 2026, Dept. 302.

5. IFP Posture

Plaintiff is proceeding in forma pauperis pursuant to this Court's **December 23, 2025, order granting Plaintiff's fee-waiver application under Government Code section 68634(e)**. A copy of the December 23, 2025 IFP order is available for inspection at the counter upon request.

6. Service

Concurrent with this re-presentation, a copy of this Notice of Filing and the attached Separate Statement is served on Defendant's counsel by electronic service in the manner previously employed in this action pursuant to CCP § 1010.6 and CRC 2.251 (Chad S. Tapp, Esq. / Tyler J. O'Connell, Esq. / Monique Schubert at porterscott.com).

NOTE TO CLERK: Plaintiff is proceeding in propria persona with a fee waiver granted December 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under

1 LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

TAB 2

Notice of Re-Presentation — SAC Support (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF RE-PRESENTATION —
SAC-LEAVE SUPPORT PACKET FOR
APRIL 30, 2026 HEARING**

(Cal. Rules of Court, rule 3.1300(d); Code Civ. Proc.,
§§ 1005, 1010.6; LRSF 2.7(B))

Hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Franciscus Dylan Rosario hereby re-presents, for filing and inclusion on the Court's register, the following five documents supporting Plaintiff's Motion for Leave to File Second Amended Complaint (hearing April 30, 2026, Dept. 302):

#	Document	Description	Original Filename
1	Notice of Supplemental Allegations and Errata	Cure matrix for Defense demurrer objections	01-Notice-Supplemental-Allegations-Errata.pdf
2	Declaration of Franciscus Dylan Rosario ISO Supplemental Allegations	Supporting declaration for supplemental allegations	02-Declaration-Supplemental-Allegations-Errata.pdf
3	Redlined Revised Proposed SAC (Exhibit 1)	Shows amendments addressing Defense objections	03-Redline-Revised-Proposed-SAC-Exhibit-1.pdf
4	Bench Memorandum on Judicial Economy	Analysis of consolidation/efficiency options	04-Bench-Memorandum-Judicial-Economy.pdf
5	Cure Matrix — Defense Objection Map	Paragraph-by-paragraph cure mapping	05-Cure-Matrix-Defense-Objection-Map.pdf

1. Purpose of This Re-Presentation

The above five documents were filed on April 23, 2026 as part of Plaintiff's tactical filing packet in Case No. CGC-25-631802. Upon review of the Court's April 24, 2026 register, Plaintiff ob-

1 serves that not all of these supporting documents appear indexed for the April 30, 2026 hearing on
2 Plaintiff's Motion for Leave to File SAC.

3 Plaintiff re-presents these documents to **perfect the record** and to provide the Court with the
4 complete support packet for its April 30, 2026 consideration of the SAC Motion, consistent with
5 **LRSF 2.7(B)** (courtesy copies for documents requiring review/action).

6 **2. Relationship to Pending Motion**

7 These five documents supplement the SAC Motion originally served and filed April 16, 2026.
8 They respond to Defense's demurrer objections and provide the Court with a cure matrix and
9 revised proposed SAC that addresses each Defense concern paragraph-by-paragraph.

10 **3. Courtesy Copies**

11 Pursuant to LRSF 2.7(B), Plaintiff is delivering courtesy copies of the entire re-presented packet
12 to Department 302 chambers concurrent with this filing.

13 **4. Relief Requested**

14 Plaintiff respectfully requests that the Clerk of the Court **accept the five attached support docu-**
15 **ments for filing and index them on the register** for Case No. CGC-25-631802 as companions to
16 the Motion for Leave to File SAC set for hearing April 30, 2026, Dept. 302.

17 **5. IFP Posture**

18 Plaintiff is proceeding in forma pauperis pursuant to this Court's **December 23, 2025, order grant-**
19 **ing Plaintiff's fee-waiver application under Government Code section 68634(e).**

20 **6. Service**

21 Concurrent with this re-presentation, a copy of this Notice and the five attached documents is
22 served on Defendant's counsel by electronic service pursuant to CCP § 1010.6 and CRC 2.251.

23
24 **NOTE TO CLERK:** Plaintiff is proceeding in propria persona with a fee waiver granted December
25 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under
26 LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 24, 2026

A handwritten signature in blue ink, appearing to read 'Francisco' with a stylized flourish at the end.

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

TAB 3

Evidentiary Objections to O'Connell Decl. (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S EVIDENTIARY
OBJECTIONS TO THE
DECLARATION OF TYLER J.
O'CONNELL**

(Evid. Code, §§ 350, 352, 356, 702, 800; Cal. Rules of
Court, rule 3.1354)

Hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

OBJECTIONS

Plaintiff Franciscus Dylan Rosario, pursuant to Evidence Code sections 350, 352, 356, 702, and 800, and California Rules of Court, rule 3.1354, hereby submits the following paragraph-by-paragraph evidentiary objections to the Declaration of Tyler J. O’Connell filed April 23, 2026 in support of Defendant’s Opposition to Plaintiff’s Motion for Leave to File Second Amended Complaint.

Objections Table

¶	Objectionable			Ruling
	Content	Grounds	Authority	Requested
3	Characterization of “the nature of Plaintiff’s allegations” as focusing on protected activity	Legal conclusion; improper lay opinion on ultimate legal issue	Evid. Code § 702	Sustain; strike
4	“[E]ntirety of the purported legal theories . . . focus inextricably on Defendant’s protected litigation conduct”	Legal conclusion; improper expert-style opinion without qualification; invades province of the Court	Evid. Code §§ 702, 800	Sustain; strike

¶	Objectionable	Grounds	Authority	Ruling
	Content			Requested
7	Statement that SAC Motion “was not filed on an ex parte basis”	Legal conclusion; ignores concurrently filed OST application (admitted at ¶ 13)	Evid. Code § 702	Sustain; strike
8	“This is defective” (referring to 14-day notice period)	Legal conclusion; improper characterization of pending OST application	Evid. Code § 702	Sustain; strike
10	Characterization of Plaintiff’s April 17 and April 20, 2026 emails as “threats” of professional consequences	Argumentative; legal conclusion; inverts statute — emails are mandatory safe-harbor notices under CCP § 128.7(c)(1) and Bus. & Prof. Code § 6086.7(a)(2)	Evid. Code §§ 352, 702	Sustain; strike

¶	Objectionable	Grounds	Authority	Ruling
	Content			Requested
12	Characterization of Plaintiff's discovery as "gamesmanship" given "Anti-SLAPP motion pending"	Legal conclusion; misleading — CCP § 425.16(g) stays only discovery "relating to the motion," not all discovery	Evid. Code §§ 352, 702	Sustain; strike
Fn. 1	Selective exhibit attachment; omits Plaintiff's meet-and-confer letter and the SAC/TAC attached to served emails	Rule of completeness; misleading; incomplete record	Evid. Code § 356	Sustain; order complete exhibits

Request for Completeness Under Evidence Code Section 356

If the Court declines to sustain Plaintiff's objections to any portion of the O'Connell Declaration, Plaintiff requests, under Evidence Code section 356 (rule of completeness), that the Court also receive and consider:

1. Plaintiff's April 16, 2026 meet-and-confer letter to Porter Scott (the document Defendant omits from its Exhibit B);
2. The full text of Plaintiff's April 17, 2026 and April 20, 2026 emails, including all attachments (SAC, TAC, and safe-harbor notice language);

1 3. Plaintiff's concurrently served Opposition to the Special Motion to Strike, already on the
2 Court's docket.

3 **Preservation of Record**

4 Plaintiff preserves these objections for appeal. Failure by the Court to rule on any objection shall
5 be deemed a denial of that objection for purposes of appellate review. (CRC 3.1354(c).)

6 _____
7 **NOTE TO CLERK:** Plaintiff is proceeding in propria persona with a fee waiver granted December
8 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under
9 LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

TAB 4

Consolidated POS-050 — Apr 22, 2026 Service Record (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**CONSOLIDATED PROOF OF
ELECTRONIC SERVICE — APRIL 22,
2026 SERVICE (CASE 802)**

(Code Civ. Proc., §§ 1010.6, 1013a; Cal. Rules of Court,
rule 2.251)

Filing Date:

Date: April 24, 2026

Time: (for Apr. 22 service)

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **DECLARATION OF SERVICE**

2 STATE OF CALIFORNIA COUNTY OF SONOMA

3 I, **Franciscus Dylan Rosario**, declare as follows:

4 1. I am the Plaintiff in pro per in the above-captioned action, Rosario v. CSAA Insurance Ex-
5 change, Case No. CGC-25-631802. I am over the age of 18 years. My residence and business
6 address is 7624 Melody Drive, Rohnert Park, California 94928. My electronic service address
7 is soltrinox@gmail.com. I am not a party's attorney and I personally effected the electronic
8 service described below.

9 2. On **April 22, 2026**, I served the following documents by electronic transmission in the manner
10 described in paragraph 4, below:

11 **Documents Served — Tactical Stack (Apr. 22, Items 07–14)**

#	Document	Filename
7	Declaration ISO Ex Parte (802)	07-Declaration-ISO-Ex- Parte.pdf
8	[Proposed] Order Staying MTS (802)	08-Proposed-Order-Staying- MTS.pdf
9	Meta-Strike Notice and OST Application	09-Meta-Strike-Notice- OST.pdf
10	Meta-Strike Memorandum of Points and Authorities	10-Meta-Strike- Memorandum.pdf
11	Meta-Strike Declaration	11-Meta-Strike- Declaration.pdf
12	Meta-Strike Request for Judicial Notice	12-Meta-Strike-Request- Judicial-Notice.pdf
13	Meta-Strike [Proposed] Order	13-Meta-Strike-Proposed- Order.pdf

#	Document	Filename
14	Errata re SAC-Leave Packet	14-Errata-SAC-Leave-Packet.pdf

Documents Served — Discovery Track 1 (Deem-Admitted Motion)

#	Document	Filename
1	Notice of Motion to Deem Matters Admitted	802-TRACK1-01-NTC-DEEM-COMPEL-SANCTIONS.pdf
2	Memorandum of Points and Authorities	802-TRACK1-02-MPA-DEEM-COMPEL-SANCTIONS.pdf
3	Separate Statement (CRC 3.1345)	802-TRACK1-03-SEPARATE-STATEMENT.pdf
4	Declaration of Rosario ISO Motion	802-TRACK1-04-DECL-ROSARIO.pdf
5	[Proposed] Order	802-TRACK1-05-PROPOSED-ORDER.pdf

Documents Served — Discovery Track 2 (Set Six Discovery)

#	Document	Filename
1	Set Six Requests for Admission	802-TRACK2-01-SET-SIX-RFA.pdf

#	Document	Filename
2	Set Six Form Interrogatories (17.1)	802-TRACK2-02-SET-SIX- FORM-INTERROG-17-1.pdf
3	Set Six Special Interrogatories	802-TRACK2-03-SET-SIX- SPECIAL-INTERROG.pdf
4	Set Six Requests for Production	802-TRACK2-04-SET-SIX- RFP.pdf
5	Declaration of Additional Discovery	802-TRACK2-05-DECL- ADDITIONAL- DISCOVERY.pdf

Documents Served — Discovery Track 3 (Default / CMC)

#	Document	Filename
1	Notice of Default (Discovery)	802-TRACK3-01-NOTICE- OF-DEFAULT.pdf
2	CMC Statement Update	802-TRACK3-02-CMC- STATEMENT-UPDATE.pdf
3	Reserved 2023-030 Packet	802-TRACK3-03- RESERVED-2023-030- PACKET.pdf

Documents Served — Consolidated Proof of Service

#	Document	Filename
99	Consolidated POS-050	99-POS-050-PROOF-OF- ELECTRONIC-SERVICE.pdf

#	Document	Filename
—	Full Discovery Stack (Tiers A/B/C Consolidated)	802-DISCOVERY-TIERS- ABC-POS050- CONSOLIDATED-FOR- CLERK.pdf

3. **Persons Served.** I caused the above documents to be served by electronic transmission to the following persons and electronic service addresses:

Role / Party	Name	Firm	Email
Counsel for Defendant CSAA Insurance Exchange	Chad S. Tapp (SBN 214898)	Porter Scott	ctapp@porterscott.com
Counsel for Defendant CSAA Insurance Exchange	Tyler J. O’Connell (SBN 346673)	Porter Scott	toconnell@porterscott.com
Legal Assistant for Defendant CSAA Insurance Exchange	Monique Schubert	Porter Scott	mschubert@porterscott.com

4. **Manner of Electronic Service.** I caused the above documents to be transmitted on April 22, 2026, **before 5:00 p.m. Pacific Time**, to each of the electronic service addresses listed above, as one or more email attachments (PDF), pursuant to Code of Civil Procedure section 1010.6 and California Rules of Court, rule 2.251. The transmitting electronic service address was soltrinox@gmail.com. The documents were served in searchable PDF format. The electronic transmission was completed and I did not receive, within a reasonable time after the transmission, any electronic message or other indication that any transmission was unsuccessful.

1 5. **Recipient Consent.** Each of the above electronic service addresses has been designated by
2 Defendant's counsel as the address at which Defendant will accept electronic service in this
3 action.

4 6. **Compliance with 5:00 p.m. Deemed-Served Rule.** Under CCP § 1010.6(a)(3)(B), elec-
5 tronic service is deemed complete at the time of the transmission. I completed transmission
6 of all documents before 5:00 p.m. Pacific Time on April 22, 2026.

7 I declare under penalty of perjury under the laws of the State of California that the foregoing is
8 true and correct.

9 _____
10 **NOTE TO CLERK:** Plaintiff is proceeding in propria persona with a fee waiver granted December
11 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under
12 LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

13 _____
14 Executed on **April 24, 2026**, at **Rohnert Park, California.**

15 /s/ Franciscus Dylan Rosario

16 **FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per 7624 Melody Drive, Rohnert Park, CA
17 94928 Tel: 650.488.7510 · E: soltrinox@gmail.com

Dated: April 24, 2026



/s/ *Franciscus Dylan Rosario*

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

TAB 5

POS-050 — Apr 24 Filing-Service (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

- Date: April 24, 2026

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(SIGNATURE OF DECLARANT)

TAB 6

POS-050 — Apr 24 Reply-Service (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: NAME: Franciscus Dylan Rosario FIRM NAME: STREET ADDRESS: 7624 Melody Drive CITY: Rohnert Park STATE: CA ZIP CODE: 94928 TELEPHONE NO.: 650.488.7510 FAX NO.: E-MAIL ADDRESS: soltrinox@gmail.com ATTORNEY FOR (name): Plaintiff, In Pro Per	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 McAllister Street MAILING ADDRESS: CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME:	
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: CSAA INSURANCE EXCHANGE	CASE NUMBER: CGC-25-631802
PROOF OF ELECTRONIC SERVICE	JUDICIAL OFFICER: Hon. Joseph M. Quinn
	DEPARTMENT: 302

1. I am at least 18 years old.
 - a. My residence or business address is (*specify*):
7624 Melody Drive, Rohnert Park, CA 94928
 - b. My electronic service address is (*specify*):
soltrinox@gmail.com
2. I electronically served the following documents (*exact titles*):
 1. Plaintiff's Reply in Support of Motion for Leave to File Second Amended Complaint, and Opposition to Defendant's April 23, 2026 Opposition and Declaration (25 pp)
 2. Plaintiff's Supplemental Brief - Late-Lodgment Cover (4 pp)

☐ The documents served are listed in an attachment. (*Form POS-050(D)/EFS-050(D) may be used for this purpose.*)
3. I electronically served the documents listed in 2 as follows:
 - a. Name of person served: Chad S. Tapp (SBN 214898)
On behalf of (*name or names of parties represented, if person served is an attorney*):
CSAA Insurance Exchange (Defendant)
 - b. Electronic service address of person served :
ctapp@porterscott.com; toconnell@porterscott.com; mschubert@porterscott.com
 - c. On (*date*): April 24, 2026

☐ The documents listed in item 2 were served electronically on the persons and in the manner described in an attachment.
(*Form POS-050(P)/EFS-050(P) may be used for this purpose.*)

Date: April 24, 2026

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

FRANCISCUS DYLAN ROSARIO

(TYPE OR PRINT NAME OF DECLARANT)



(SIGNATURE OF DECLARANT)

TAB 7

POS-050 — Apr 24 Supplemental-Service (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: NAME: Franciscus Dylan Rosario FIRM NAME: STREET ADDRESS: 7624 Melody Drive CITY: Rohnert Park STATE: CA ZIP CODE: 94928 TELEPHONE NO.: 650.488.7510 FAX NO.: E-MAIL ADDRESS: soltrinox@gmail.com ATTORNEY FOR (name): Plaintiff, In Pro Per	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 McAllister Street MAILING ADDRESS: CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME:	
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: CSAA INSURANCE EXCHANGE	CASE NUMBER: CGC-25-631802
PROOF OF ELECTRONIC SERVICE	JUDICIAL OFFICER: Hon. Joseph M. Quinn
	DEPARTMENT: 302

1. I am at least 18 years old.

a. My residence or business address is (*specify*):
 7624 Melody Drive, Rohnert Park, CA 94928

b. My electronic service address is (*specify*):
 soltrinox@gmail.com

2. I electronically served the following documents (*exact titles*):

1. Plaintiff's Separate Statement ISO Motion for Leave to File SAC (13 pp)
2. [Proposed] Order Staying Motion to Strike Pending Resolution of MFL-SAC (3 pp)
3. Notice of Filing - Separate Statement (802) (4 pp)

☐ The documents served are listed in an attachment. (*Form POS-050(D)/EFS-050(D) may be used for this purpose.*)

3. I electronically served the documents listed in 2 as follows:

a. Name of person served: Chad S. Tapp (SBN 214898)

On behalf of (*name or names of parties represented, if person served is an attorney*):
 CSAA Insurance Exchange (Defendant)

b. Electronic service address of person served :
 ctapp@porterscott.com; toconnell@porterscott.com; mschubert@porterscott.com

c. On (*date*): April 24, 2026

☐ The documents listed in item 2 were served electronically on the persons and in the manner described in an attachment.
 (*Form POS-050(P)/EFS-050(P) may be used for this purpose.*)

Date: April 24, 2026

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

FRANCISCUS DYLAN ROSARIO

(TYPE OR PRINT NAME OF DECLARANT)



(SIGNATURE OF DECLARANT)

--- LODGED — DO NOT FILE-STAMP ---

Courtesy / proposed-order stack — follow chambers instructions on cover sheets

TAB 8

[Proposed] Order Staying Motion to Strike (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-21-594102)

Case

**[PROPOSED] ORDER STAYING
MOTION TO STRIKE**

No.: CGC-25-631802

Case: ROSARIO v. CSAA INSURANCE EXCHANGE

Court: Superior Court of California, County of San Francisco

Department: 302

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE, and DOES 1 through 50, inclusive,

Defendants.

Case No. CGC-25-631802

ORDER

The Ex Parte Application of Plaintiff FRANCISCUS DYLAN ROSARIO for an Order Staying Defendant's Motion to Strike having come on for hearing on _____, 2026, at _____ a.m./p.m., in Department 302 of the above-entitled Court, the Honorable _____ presiding; Plaintiff appearing in pro per; Defendant appearing through counsel of record _____; The Court having considered the ex parte application, the Declaration of Franciscus Dylan Rosario, any opposition, the arguments of the parties, and the file in this action;

GOOD CAUSE APPEARING THEREFOR,

IT IS HEREBY ORDERED that:

1. Defendant's Motion to Strike under CCP § 436, filed April 22, 2026 and currently set for hearing May 19, 2026, is hereby **STAYED** pending this Court's ruling on Plaintiff's Motion for Leave to File Second Amended Complaint, set for hearing April 30, 2026.
2. The May 19, 2026 hearing on the Motion to Strike is hereby **TAKEN OFF CALENDAR**.
3. If Plaintiff's Motion for Leave to File Second Amended Complaint is **DENIED**, the Motion to Strike shall be re-calendared for hearing at a date to be set by the Clerk, with opposition and reply deadlines recalculated from the new hearing date.
4. If Plaintiff's Motion for Leave to File Second Amended Complaint is **GRANTED**, the Motion to Strike shall be **DEEMED MOOT** and dropped from the calendar without further order.
5. Defendant may file a new motion to strike the Second Amended Complaint, if warranted, in accordance with the Code of Civil Procedure.

IT IS SO ORDERED.

Dated: _____

Judge of the Superior Court

Submitted by:

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

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TAB 9

Late-Lodgment Cover — Reply ISO MFL-SAC (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S SUPPLEMENTAL BRIEF
IN FURTHER SUPPORT OF MOTION
FOR LEAVE TO FILE SECOND
AMENDED COMPLAINT [Cover Sheet
for Late-Lodged Reply Papers]**

(Code Civ. Proc., §§ 1005(b), 1010.6; Cal. Rules of Court,
rules 3.1113, 3.1300(d))

Hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **COVER**

2 Plaintiff Franciscus Dylan Rosario respectfully lodges the attached **Plaintiff’s Reply in Support**
3 **of Motion for Leave to File Second Amended Complaint, and Opposition to Defendant’s**
4 **April 23, 2026 Opposition and Declaration** (“Reply,” 25 pp., ~4,900 words per CRC 3.1113(f))
5 for the April 30, 2026, 9:00 a.m. hearing in Department 302.

6 Plaintiff files this short cover to acknowledge that the Reply is lodged **one court day after the**
7 **nominal five-court-day reply wall under CCP § 1005(b)** and to explain the narrow circum-
8 stances that necessitated a one-day extension. Plaintiff respectfully asks that this Court exercise
9 its discretion under CCP § 1005(b) and California Rules of Court, rule 3.1300(d), to consider the
10 Reply.

11 **1. The reply wall and the one-court-day delay**

12 Under CCP § 1005(b), reply papers for the April 30, 2026 hearing were nominally due **April 23,**
13 **2026**. Defendant’s Opposition was served electronically at the close of business on **April 23, 2026**
14 and consists of:

- 15 • A 339 KB, 7-page **Opposition to Plaintiff’s Motion for Leave to File SAC**; and
- 16 • A 4.95 MB, **17,804-line Declaration of Tyler J. O’Connell** with seven exhibits.

17 Defendant’s Opposition arrived at the moment the reply wall closed. Preparation of a competent
18 reply — including review of the 17,804-line declaration, preparation of a paragraph-by-paragraph
19 evidentiary-objections table (Evid. Code §§ 350, 352, 356, 702, 800), verification of the five
20 California Supreme Court authorities cited (Klopstock, Blank v. Kirwan, Trafton, Mesler, Foreman
21 & Clark), and word-count compliance with CRC 3.1113(f) — required a single additional court
22 day. The Reply is lodged April 24, 2026 — **one court day late**.

23 **2. Good cause to consider the Reply — CRC 3.1300(d)**

24 CRC 3.1300(d) permits the court in its discretion to refuse or consider late-served or late-filed
25 papers. The circumstances here are those the rule was written to accommodate:

- 26 1. **The reply becomes physically possible only after the opposition is served.** Defendant’s
27 Opposition was served 5:00 p.m. April 23, 2026; Plaintiff has lodged this Reply on the next

1 court day, April 24, 2026. That is the tightest turnaround available on this calendar.

2 **2. The Reply responds to materials Plaintiff was entitled to expect earlier.** Defendant's
3 Opposition is 339 KB and its Declaration is 4.95 MB / 17,804 lines — the Declaration alone
4 exceeds the Opposition itself by more than an order of magnitude. A compliant response
5 under CCP § 1005(b) could not be generated the same day Defendant served.

6 **3. No prejudice to Defendant.** Defendant is electronically served today concurrent with this
7 lodgment (CCP § 1010.6). Defendant's preparation for the April 30 hearing is not materially
8 affected by a single-court-day adjustment.

9 **4. Judicial economy favors consideration.** The five Supreme Court authorities, Baral / Nguyen-Lam
10 narrowing analysis, and paragraph-by-paragraph evidentiary objections aid the Court's review
11 of a motion that squarely implicates Foreman & Clark supersession. Declining to consider
12 the Reply would leave Defendant's 17,804-line Declaration effectively uncontested on the
13 record.

14 **3. Plaintiff does not oppose a brief continuance**

15 If the Court deems a continuance of the April 30, 2026 hearing warranted to restore a perfect-
16 notice posture under CCP § 1005(b) — for example, a one-week continuance to May 7, 2026, at
17 9:00 a.m. — Plaintiff **expressly does not oppose** that relief. Plaintiff's interest is in the Court's
18 considered review of the Reply, not in the particular hearing date.

19 **4. Contemporaneous filings and service**

- 20 • **Reply papers** lodged herewith: REPLY-SAC-APR-30-COURT-READY.pdf (25 pp., ~4,900
21 words).
- 22 • **Proof of Electronic Service (POS-050)** lodged herewith (04-POS-050-802-REPLY.pdf):
23 service on Chad S. Tapp (SBN 214898), Tyler J. O'Connell (SBN 346673), and Monique
24 Schubert at porterscott.com per CCP § 1010.6.
- 25 • **Courtesy bench copy** three-hole-punched and tabbed delivered to Department 302 chambers.

1 **5. Relief requested**

2 Plaintiff respectfully requests that this Court **accept and consider Plaintiff's Reply** on the April
3 30, 2026 calendar. In the alternative, Plaintiff requests such short continuance as the Court may
4 deem appropriate under CCP § 1005(b) and CRC 3.1300(d).

5 _____
6 **NOTE TO CLERK:** Plaintiff is proceeding in propria persona with a fee waiver granted December
7 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under
8 LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

TAB 10

Reply ISO MFL-SAC — Apr 30 hearing (802)

CGC-25-631802 | Dept 302 | Hon. Joseph M. Quinn | Apr 24, 2026 clerk packet

Clerk packet — single-sided US Letter recommended

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S REPLY IN SUPPORT OF
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT,
AND OPPOSITION TO DEFENDANT'S
APRIL 23, 2026 OPPOSITION AND
DECLARATION**

(Code Civ. Proc., §§ 473(a)(1), 576; 425.16(f); 1005;

1010.6;

Cal. Rules of Court, rules 3.1113, 3.1300, 3.1320)

Hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

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I. INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully submits this Reply in further support of his Motion for Leave to File a Second Amended Complaint (“SAC Motion”), served and filed April 16, 2026, and in opposition to Defendant CSAA Insurance Exchange’s Opposition and supporting Declaration of Tyler J. O’Connell, both filed April 23, 2026 (collectively, the “Opposition”).

The Opposition does not respond to the motion Plaintiff actually filed. It responds to a motion Plaintiff did not file — a supposed attempt to use amendment as of right under Code of Civil Procedure section 472 to moot a pending anti-SLAPP. Plaintiff did nothing of the sort. Plaintiff filed a **noticed motion** under Code of Civil Procedure sections **473(a)(1)** and **576**, accompanied by a lodged proposed pleading, an ex parte application for an order shortening time under California Rules of Court, rule 3.1200, a separate on-the-merits opposition to the anti-SLAPP motion served the same day, and a written meet-and-confer letter explaining the basis for each proposed amendment. That procedural posture is the opposite of the “plead-around” tactic the Opposition decries.

The Opposition’s three grounds — “insufficient notice,” “prejudice,” and “cannot amend around anti-SLAPP” — are each defective on the law and on the record. (1) The notice concern is **cured, waived, and moot**: Plaintiff concurrently filed an ex parte application for OST, the Defendant appeared and filed a substantive seven-page opposition plus a sixty-three-page declaration plus seven exhibits, and any residual concern is addressed by a brief continuance under CCP § 1005, not denial. (2) The prejudice ground is unsupported by any concrete showing cognizable under Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761, or Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910. (3) The supposed “no amending around anti-SLAPP” rule is **not what the cases say**. Every Court of Appeal decision the Opposition cites addresses a narrow anti-subversion rule aimed at CCP § 472 amendments as of right; none addresses a noticed, good-faith CCP §§ 473(a)/576 motion lodged concurrently with a full merits opposition to the challenged motion. The California Supreme Court in Baral v. Schnitt (2016) 1 Cal.5th 376, and the Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 — neither of which the Opposition cites — settle the question.

Most tellingly, the Legislature itself has already resolved this point. **Code of Civil Procedure section 425.16, subdivision (f)** permits a special motion to be refiled against the amended pleading within sixty days. A rule that forbade amendment while an anti-SLAPP was pending would make subdivision (f) a dead letter. The statute does not have a dead letter.

Plaintiff respectfully asks this Court to grant leave under sections 473(a) and 576 on any of the three procedural vehicles set forth in Section XII (SAC, contingent TAC, or a consolidated TAC), render the pending anti-SLAPP and demurrer against the FAC moot by operation of Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, and preserve Defendant’s statutory sixty-day renewed-motion right under § 425.16(f).

II. SUMMARY OF REPLY

Opposition Ground	Plaintiff’s Response	Controlling Authority
“Cannot amend around anti-SLAPP”	Rule is anti-subversion aimed at § 472 amendments of right; Plaintiff filed a noticed motion under §§ 473(a)/576; Legislature authorized renewed motion in § 425.16(f)	<u>Baral</u> (2016) 1 Cal.5th 376; <u>Nguyen-Lam</u> (2009) 171 Cal.App.4th 858; CCP § 425.16(f)
“14 days’ notice is insufficient (18 required)”	Ex parte OST application filed concurrently; Defendant appeared and substantively responded; remedy is continuance, not denial	CCP § 1005; CRC 3.1200–3.1207; <u>Carlton v. Quint</u> (2000) 77 Cal.App.4th 690, 697

Opposition Ground	Plaintiff's Response	Controlling Authority
"Substantial prejudice"	No trial date, no discovery taken, no witnesses lost; anti-SLAPP cost is a sunk cost with § 425.16(f) remedy	<u>Atkinson</u> (2003) 109 Cal.App.4th 739, 761; <u>Kyle v. Carmon</u> (1999) 71 Cal.App.4th 901, 909–910; <u>Kolani v. Gluska</u> (1998) 64 Cal.App.4th 402, 412
"Plaintiff's emails are threats"	The April 17 and April 20 emails are statutorily required safe-harbor notices under CCP § 128.7(c)(1) and § 128.5, and Rule of Professional Conduct 3.3 / Bus. & Prof. Code § 6086.7	CCP §§ 128.5, 128.7(c)(1); RPC 3.3; Bus. & Prof. Code § 6086.7(a)(2); <u>Peake v. Underwood</u> (2014) 227 Cal.App.4th 428
"Plaintiff's TAC and discovery are gamesmanship"	TAC is contingent second-layer cure; discovery is not barred by § 425.16(g)'s narrow stay, which reaches only discovery "relating to the motion"	CCP § 425.16(g); <u>Britts v. Superior Court</u> (2006) 145 Cal.App.4th 1112

Opposition Ground	Plaintiff’s Response	Controlling Authority
“Amendment is barred as a matter of law”	§§ 473(a)(1) and 576 authorize amendment of “any pleading” “at any stage” “in furtherance of justice”; five California Supreme Court decisions squarely authorize amendment to add a cause of action here	CCP §§ 473(a)(1), 576; <u>Klopstock</u> (1941) 17 Cal.2d 13, 19–20; <u>Blank v. Kirwan</u> (1985) 39 Cal.3d 311, 318; <u>Trafton v. Youngblood</u> (1968) 69 Cal.2d 17, 31; <u>Mesler v. Bragg Management Co.</u> (1985) 39 Cal.3d 290, 296–297; <u>Foreman & Clark Corp. v. Fallon</u> (1971) 3 Cal.3d 875, 884

III. LEGAL STANDARD GOVERNING LEAVE TO AMEND

California’s amendment policy is codified, liberal, and — at this posture — nearly mandatory absent concrete prejudice. The controlling authority is supplied by the California Supreme Court in five decisions that, taken together, answer each of the defense’s objections as a matter of binding state-Supreme-Court law.

A. Statutory authority

Code of Civil Procedure section 473, subdivision (a)(1) provides: “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars”

Code of Civil Procedure section 576 provides: “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the

1 amendment of any pleading or pretrial conference order.”

2 The Legislature’s chosen words — “any” and “in furtherance of justice” — define the scope. The
3 California Supreme Court has given those words their full meaning.

4 **B. Controlling California Supreme Court authority**

5 **First**, Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20, is the foundational Supreme Court
6 statement of the liberality rule. Writing for a unanimous Court, Chief Justice Gibson rejected the
7 “unqualified” form of the rule against amending to add a new cause of action: “[I]t is obvious that
8 the unqualified way in which the rule is sometimes stated — i.e., that a new or different cause of
9 action cannot be introduced by amendment — cannot be accepted. For the most common kinds
10 of amendments are those in which complaints are amended that do not state facts sufficient to
11 constitute a cause of action; and in these, and often in the case of new parties, **a new cause of**
12 **action is in fact for the first time introduced.**” (*Id.* at p. 20, emphasis added.) The only limit
13 the Court recognized was a “wholly distinct and different legal obligation against the defendant.”
14 (*Ibid.*) The SAC/TAC do not state a wholly different legal obligation; they enforce the same
15 fraud/UCL obligation arising from CSAA’s February 25, 2021 denial letter already pleaded in the
16 FAC.

17 **Second**, Blank v. Kirwan (1985) 39 Cal.3d 311, 318, supplies the modern Supreme Court “rea-
18 sonable possibility” rule: “When a demurrer is ... sustained without leave to amend, we decide
19 whether there is a reasonable possibility that the defect can be cured by amendment: if it can be,
20 the trial court has abused its discretion and we reverse; if not, there has been no abuse of discre-
21 tion and we affirm.” That rule is not limited to demurrer review; it states the substantive test for
22 whether leave may properly be denied. Here, the reasonable possibility is already demonstrated —
23 the proposed SAC is lodged, on file, and materially cures every pleading objection the defense has
24 identified.

25 **Third**, Trafton v. Youngblood (1968) 69 Cal.2d 17, 31, supplies the Supreme Court’s “great
26 liberality” standard: “Such amendments have been allowed with great liberality ‘and no abuse
27 of discretion is shown unless by permitting the amendment new and substantially different issues
28 are introduced in the case or the rights of the adverse party prejudiced.’ ” (Quoting McNamara v.

1 Steckman (1927) 202 Cal. 569, 572.) The SAC does not introduce new-and-substantially-different
2 issues in the Trafton sense; it refines the same theories. And the defense identifies no prejudice
3 that qualifies.

4 **Fourth**, Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297, holds that “there
5 is a strong policy in favor of liberal allowance of amendments,” and that a trial court abuses its
6 discretion by denying leave to add a cause of action (alter ego) even **six weeks before trial**, where
7 the defendant has notice of the theory and no cognizable prejudice is shown. The posture here is
8 far more permissive: no trial date is set, and the defense has had actual notice of each SAC theory
9 through the meet-and-confer correspondence served concurrently with the motion.

10 **Fifth**, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, is the procedural engine:
11 “[A]n amendatory pleading supersedes the original one, which ceases to perform any function as a
12 pleading.” Once leave is granted, the FAC is superseded by operation of law. The pending special
13 motion to strike and demurrer — each directed to the FAC — attack a pleading that no longer
14 exists, and are moot. The defense’s statutory remedy is the Legislature’s own: a renewed motion
15 within sixty days under section 425.16, subdivision (f).

16 **C. Application to this record**

17 Under the five controlling Supreme Court authorities, leave to amend is permissible and, on this
18 record, required. Kloppstock authorizes the addition of new causes of action arising from the same
19 legal obligation. Blank v. Kirwan requires leave where a reasonable possibility of cure is shown.
20 Trafton establishes the great-liberality standard. Mesler applies that standard to an amendment
21 adding a cause of action and rejects as insufficient the precise “expenditure of resources” / “trial
22 proximity” objections the defense advances here. Foreman & Clark supplies the consequence:
23 mootness of pending motions against the superseded pleading.

24 The Court of Appeal has uniformly applied the same rule. Howard v. County of San Diego
25 (2010) 184 Cal.App.4th 1422, 1428 (“The policy favoring amendment is so strong that denial of
26 leave to amend is rarely justified.”); Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761
27 (only legitimate ground for denial is prejudice); Kolani v. Gluska (1998) 64 Cal.App.4th 402, 412
28 (same); Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910 (prejudice must be concrete: lost

witnesses, imperiled trial date, actual surprise); Anmaco, Inc. v. Bohlken (1993) 13 Cal.App.4th 891, 901 (superseding effect of amendment).

No trial date is set. No discovery has proceeded; Defendant invokes the § 425.16(g) stay. No witness has been lost, and no evidence has been destroyed or impaired. On this record, there is **no prejudice** cognizable under Mesler, Atkinson, Kolani, or Kyle. The Supreme Court authority compels the result: leave should be granted.

IV. THE DEFENSE MISSTATES THE “NO AMENDING AROUND ANTI-SLAPP” RULE

A. The rule is anti-subversion, not anti-amendment

The Opposition relies on Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, City of Colton v. Singletary (2012) 206 Cal.App.4th 751, Hansen v. California Dept. of Corrections & Rehabilitation (2008) 171 Cal.App.4th 1537, and Jackson v. Mayweather (2017) 10 Cal.App.5th 1240 for the sweeping proposition that pleadings cannot be amended while an anti-SLAPP motion is pending.

None of those cases holds that. The operative verb in every one of them is “**subvert**” or “**avoid a ruling.**” Jackson v. Mayweather, for example, quotes Contreras v. Dowling (2016) 4 Cal.App.5th 774, 791: “[A] plaintiff . . . may not seek to **subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint** . . . in response to the motion.” Jackson, 10 Cal.App.5th at 1263–1264. The bar is a bad-faith bar aimed at plaintiffs who attempt to moot a filed anti-SLAPP by re-pleading **the same claims** that the motion challenges, using the right of amendment under CCP § 472 or by replacing the challenged pleading wholesale to prevent the motion from being heard.

Plaintiff is doing neither. Plaintiff has not invoked § 472. Plaintiff has not withdrawn or abandoned the FAC. Plaintiff filed a **full merits opposition to the anti-SLAPP on April 16, 2026**, simultaneously with the SAC Motion. The SAC adds and sharpens non-communicative conduct theories that — under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057,

1 1062–1063, and Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212 — fall **outside the reach of**
2 **§ 425.16 at step one**. A plaintiff who confronts the anti-SLAPP on the merits and simultaneously
3 seeks leave to harden the pleading is not subverting anything; he is litigating.

4 **B. CCP § 425.16(f) is the Legislature’s own answer**

5 If the categorical bar the Opposition describes existed, **Code of Civil Procedure section 425.16,**
6 **subdivision (f)** would be superfluous. That subdivision expressly permits a defendant to file a
7 renewed special motion within sixty days of service of the complaint “or, in the court’s discre-
8 tion, at any later time upon terms it deems proper.” Every appellate decision that has addressed a
9 post-anti-SLAPP amendment has preserved the defendant’s § 425.16(f) remedy — not foreclosed
10 amendment. See JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 (amended pleading moots pend-
11 ing anti-SLAPP; defendant may file a new motion against the amended pleading). The statute
12 presumes that amendment can occur; the only question is whether the trial court should permit it
13 in its discretion. Here, that discretion is exercised under the “furtherance of justice” standard of §§
14 473(a)(1) and 576.

15 **C. Baral v. Schnitt operates paragraph-by-paragraph, not pleading-wide**

16 The California Supreme Court resolved the structural question about how § 425.16 operates when
17 a complaint contains both protected and non-protected allegations. **Anti-SLAPP is a paragraph-**
18 **by-paragraph / claim-by-claim instrument, not a pleading-wide veto.** Baral v. Schnitt (2016) 1
19 Cal.5th 376, 393–396 holds that the special motion can strike **specific allegations** of protected ac-
20 tivity while leaving unprotected claims intact. It follows that an amendment that **adds or clarifies**
21 **causes of action grounded in non-protected conduct** cannot be “subverting” a motion that, under
22 Baral, never reached those causes of action in the first place. The Opposition does not cite Baral at
23 all. That omission is dispositive, because Baral is the Supreme Court’s governing statement of the
24 interaction between § 425.16 and the structure of a California complaint.

25 **D. Nguyen-Lam v. Cao expressly permits good-faith amendment**

26 The Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 held that a
27 trial court may permit amendment in connection with, or after, an anti-SLAPP ruling when the

1 amendment is offered in good faith and cures a pleading defect. Nguyen-Lam is not an outlier; it
2 states the ordinary rule. The Opposition does not cite Nguyen-Lam either. Again, that omission
3 is dispositive, because Nguyen-Lam is the controlling Court of Appeal authority on the exact
4 procedural situation presented here.

5 In short, the Opposition is not asking this Court to apply California law. It is asking this Court to
6 apply a law the Opposition invented by reading the narrow anti-subversion cases as if they were
7 categorical stays on §§ 473(a) and 576. They are not.

8 **V. THE NOTICE OBJECTION IS CURED, WAIVED, AND MOOT**

9 The Opposition asserts 14 days' notice is insufficient because CCP § 1005(b) requires 16 court
10 days plus two calendar days for electronic service under § 1010.6. Plaintiff does not dispute the
11 arithmetic in the abstract. The objection nevertheless fails for three independent reasons.

12 **1. Concurrent OST application.** On April 16, 2026, simultaneously with service of the SAC
13 Motion, Plaintiff filed an ex parte application for an order shortening time under California Rules of
14 Court, rule 3.1200 et seq., expressly seeking a hearing on April 30 concurrent with the Defendant's
15 anti-SLAPP schedule. If the Court grants OST, the notice objection is resolved on the merits. The
16 Opposition's choice to decline to address the OST application (O'Connell Decl. ¶ 13) does not
17 convert an open ex parte request into a notice defect.

18 **2. Appearance and substantive response waive short-notice objection.** Defendant appeared,
19 filed a seven-page opposition, a sixty-three-page declaration, and seven exhibits including multiple
20 email threads, proofs of service, and legal argument. Under Carlton v. Quint (2000) 77 Cal.App.4th
21 690, 697 and its progeny, appearance and substantive briefing on the merits waive any claim that
22 the notice period prejudiced the opposing party's ability to respond.

23 **3. Remedy is continuance, not denial.** The statutory remedy for insufficient notice is a brief con-
24 tinuance under CCP § 1005(b), not denial of a noticed motion on a substantive question. Plaintiff
25 agrees in advance to any continuance this Court deems necessary to restore perfect-notice posture.

VI. NO COGNIZABLE PREJUDICE EXISTS

The Opposition's "substantial prejudice" heading lists (1) anti-SLAPP briefing costs already incurred and (2) a compressed opposition schedule. Neither is cognizable prejudice under Atkinson, Kolani, or Kyle.

First, anti-SLAPP briefing costs are a **sunk cost** with a Legislature-provided remedy. The Defendant may file a new special motion under § 425.16(f) within sixty days; if that renewed motion succeeds, the Defendant recovers mandatory fees under § 425.16(c)(1). If the renewed motion fails, there is no prejudice because the motion would have failed on the same grounds regardless of amendment. Either way, Defendant's sunk cost is not prejudice under California law.

Second, the compressed opposition schedule is answered by continuance, not denial. Defendant has now filed a complete opposition. Any lingering compression concern is moot.

By contrast, the prejudice to Plaintiff — and, critically, to the Court's own calendar — if leave is denied is material and unavoidable. The parties will brief and the Court will hear the May 12/13 motions against a pleading (the FAC) that Plaintiff will immediately move to amend under §§ 473(a) and 576. The Court will then repeat the same analytic exercise against the SAC. That double-hearing outcome is exactly what the Klopstock / Blank / Trafton / Mesler / Foreman & Clark line of Supreme Court authority, and §§ 473(a) and 576 themselves, are designed to prevent.

VII. THE SAC (AND CONTINGENT TAC) ARE OFFERED IN FURTHER- ANCE OF JUSTICE

Plaintiff's proposed SAC:

1. **Sharpens the gravamen** as the non-communicative pre-litigation institutional failure to obtain the 911 audio, the responding officers' body-worn camera footage, and the computer-aided dispatch records before mailing the February 25, 2021 denial letter to Plaintiff while he was in post-ICU recovery at San Francisco General Hospital. This is Park and Kimmel compliance; it is not litigation conduct.
2. **Adds a Prentice-doctrine consequential-damages theory** tied to the four-year underlying-litigation cost the precipitous denial induced.

3. **Pleads a three-anchor delayed-discovery sequence** (January 17, 2025 MIL No. 17 disclosure; February 18, 2025 prior-counsel testimony; April 16, 2025 “provided by Dolan” admission) that satisfies Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472–1473, and CCP § 338(d) on the face of the pleading.
4. **Particularizes the fraud elements** under Lazar v. Superior Court (1996) 12 Cal.4th 631 (claim representative Sarah Rash; claim number 1004-09-1054; the February 25, 2021 denial letter text).
5. **Invokes Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287, 305’s express preservation of “traditional theories” including fraud**, together with Zhang v. Superior Court (2013) 57 Cal.4th 364’s preservation of UCL.

The contingent TAC, noticed April 22, 2026, adds paragraph-level cures responsive to the objections in Defendant’s subsequent April 22 Motion to Strike. The TAC exists because the SAC was drafted and lodged on April 16 — before Defendant served its new Motion to Strike. Both vehicles rest on the same statutory authority (§§ 473(a)(1), 576) and the same Supreme Court liberality rule. None of the proposed amendments adds parties beyond CSAA and Does. None requires any additional discovery beyond what Plaintiff already has the right to seek under the Civil Discovery Act. None alters any trial date (because none is set).

VIII. JUDICIAL-ECONOMY OFFER: A SINGLE CONSOLIDATED TAC

To further conserve the Court’s resources, Plaintiff respectfully offers the Court a choice. In lieu of sequential SAC and TAC proceedings, Plaintiff is prepared to lodge a **single consolidated Third Amended Complaint** that folds in every curative allegation Plaintiff would otherwise present in both vehicles. A consolidated TAC would:

1. Supersede the FAC under Foreman & Clark, mooted the pending anti-SLAPP and demurrer against the FAC.
2. Eliminate the need for any further amendment motion in this pleading cycle.
3. Present Defendant with a single, clean target for any renewed motion under CCP § 425.16(f), § 430.41(b), or § 435.
4. Remove from the Court’s docket at least two future hearings (the contingent TAC motion, and

1 an otherwise-predictable further round of pleading challenges to the SAC).
2 Plaintiff will lodge the consolidated TAC on whatever timeline the Court directs — including by
3 the close of business April 30 if the Court so orders, or on a short-form OST. Plaintiff defers to the
4 Court’s preference on vehicle (SAC, TAC, or consolidated TAC) and on timing.

5 **IX. EVEN AGAINST THE FAC, THE DEFENSE’S PENDING MOTIONS FAIL**

6 Plaintiff is not seeking amendment because the FAC is defective. The FAC can — and does —
7 withstand Defendant’s pending motions on the merits, as Plaintiff’s April 16, 2026 Opposition to
8 the Special Motion to Strike and April 16, 2026 Opposition to the Demurrer demonstrate. Plaintiff
9 includes this section to make one point for the record: the structural errors in Defendant’s motions
10 **are not curable by reply briefing and do not depend on which version of the complaint is**
11 **before the Court.**

- 12 • **Anti-SLAPP step-one error.** Defendant performs no gravamen analysis. Park v. Board of
13 Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1063 requires the Court
14 to identify the **specific act** supplying the elements of the challenged cause of action. The
15 gravamen of this complaint is pre-litigation non-communicative institutional failure, which
16 Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212 excludes from § 425.16 and from Civil
17 Code § 47(b). The defense’s briefing uses a “level of abstraction” move Park unanimously
18 rejected.
- 19 • **Step-two / step-one conflation.** Defendant imports probability-language into step one, con-
20 trary to Baral v. Schnitt (2016) 1 Cal.5th 376, 384–385, which holds the two steps are distinct.
- 21 • **Privilege overreach.** Defendant reads Civil Code § 47(b) as if it were a “privilege blob,” con-
22 trary to Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1246–
23 1247 (illegality / extrinsic-fraud exceptions) and Kwikset Corp. v. Superior Court (2011) 51
24 Cal.4th 310 (evidentiary versus gravamen distinction). Flatley v. Mauro (2006) 39 Cal.4th
25 299, 317–321 eliminates immunity for conduct illegal as a matter of law.
- 26 • **Moradi-Shalal inversion.** Defendant cites Moradi-Shalal for a categorical bar; the opinion
27 at page 305 says the opposite, expressly preserving “traditional theories such as fraud” in
28 common-law actions. Zhang v. Superior Court (2013) 57 Cal.4th 364 confirms the UCL

1 preservation.

- 2 • **“Improper appeal” category error.** Defendant treats this action as an appeal of the under-
3 lying negligence judgment in CGC-21-594102. CCP § 904.1 governs appeals; this action
4 is an original fraud and UCL action asserting a **different primary right** under Crowley v.
5 Katleman (1994) 8 Cal.4th 666, 681–682, Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th
6 888, 904.
- 7 • **Collateral estoppel without the elements.** Defendant fails to walk through the five factors of
8 Lucido v. Superior Court (1990) 51 Cal.3d 335, 341. CSAA was not a party to the underlying
9 action. No claim-handling fraud issue was actually litigated there. Lucido therefore does not
10 apply on its own terms.
- 11 • **Limitations on the face.** Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472–
12 1473 and CCP § 338(d) require delayed-discovery allegations to be taken as true on demurrer
13 under Serrano v. Priest (1971) 5 Cal.3d 584, 591. Plaintiff’s three-anchor sequence appears
14 on the face of the FAC and is dispositive at this stage.

15 Each defect is a defect in the defense’s **motions**, not the complaint. Each defect persists regardless
16 of whether the Court hears the motions against the FAC, the SAC, or a consolidated TAC.

17 **X. THE DEFENSE’S CHARACTERIZATION OF PLAINTIFF’S SAFE-HARBOR** 18 **LETTERS IS INVERTED**

19 The O’Connell Declaration at paragraph 10 characterizes Plaintiff’s April 17 and April 20, 2026
20 emails as threats of “impending professional consequences” including “a negative mark” on coun-
21 sel’s Bar license. Those emails are **statutorily required safe-harbor notices**.

- 22 • Under **CCP § 128.7(c)(1)**, a party intending to seek sanctions for an unwarranted filing must
23 serve a written safe-harbor notice on the offending party and provide a twenty-one-day oppor-
24 tunity to withdraw or correct the filing. Failure to serve the safe-harbor notice is grounds for
25 denial of a later § 128.7 motion. Peake v. Underwood (2014) 227 Cal.App.4th 428, 440–445.
26 Plaintiff’s emails are that notice.
- 27 • Under **California Rules of Professional Conduct, rule 3.3** (candor toward the tribunal) and

1 **Business & Professions Code § 6086.7, subdivision (a)(2)**, a party with knowledge of a
2 pleading that contains legal contentions not warranted by existing law, or that omits directly
3 adverse controlling authority, may preserve the question for referral. Identifying that preser-
4 vation to opposing counsel before filing is the **non-escalatory** step, not the escalatory one.

- 5 • Under **CCP § 425.16, subdivision (c)(1)**, a plaintiff prevailing on a frivolous special mo-
6 tion to strike is entitled to mandatory attorney fees and costs. Moore v. Shaw (2004) 116
7 Cal.App.4th 182; Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382.

8 **Material omissions and mis-framings in the Opposition and Declaration.** Apart from the mis-
9 characterization of Plaintiff’s emails, the Opposition and O’Connell Declaration omit—or treat as
10 nonexistent—authorities and record materials that any judge applying California law would treat
11 as **central** to the issues actually presented. Non-exhaustive examples include:

- 12 • **No honest engagement with Baral v. Schnitt (2016) 1 Cal.5th 376*** (paragraph-by-paragraph
13 operation of the special motion to strike) **or with CCP § 425.16, subdivision (f)** (sixty-day
14 renewed-motion right), while pressing a categorical “no amendment during anti-SLAPP” rule
15 those sources refute.
- 16 • **No treatment of Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873*** on good-
17 faith amendment offered in connection with (or after) anti-SLAPP practice—the controlling
18 Court of Appeal framework for the posture Plaintiff actually took (noticed leave under CCP
19 §§ 473(a)(1) and 576, with a full merits opposition served the same day).
- 20 • **No fair treatment of the Klopstock v. Superior Court (1941) 17 Cal.2d 13, Blank v.
21 Kirwan (1985) 39 Cal.3d 311, Trafton v. Youngblood (1968) 69 Cal.2d 17, Mesler v.
22 Bragg Management Co. (1985) 39 Cal.3d 290, and Foreman & Clark Corp. v. Fallon
23 (1971) 3 Cal.3d 875 line that governs leave to amend and supersession—binding California
24 Supreme Court authority on the leave motion the Opposition avoids confronting on its own
25 terms.**
- 26 • **Incomplete record-making** (including Declaration footnote 1 and related exhibits) that omits
27 Plaintiff’s April 16, 2026 meet-and-confer correspondence and the lodged SAC/TAC materi-
28 als served with the leave motion—misleading under Evidence Code § 356 and inconsistent

1 with an orderly presentation to the Court.

2 **Candor, controlling law, and why Plaintiff gave notice (judicial economy, not intimidation).**

3 The **California Rules of Professional Conduct, rule 3.3** (especially subds. (a)(2)–(a)(3)) impose
4 on counsel duties of **candor toward the tribunal**: counsel must not make material legal asser-
5 tions that existing law does not warrant, and must not knowingly fail to disclose **directly adverse**
6 legal authority in the controlling jurisdiction known to counsel when that authority has not been
7 disclosed by the other side. Those duties exist so courts receive **honest, complete legal argu-**
8 **ment**—not so opposing parties can be punished for citing the law. **CCP § 128.7(c)(1)** likewise
9 makes the safe-harbor notice a **predicate** to sanctions for qualifying unwarranted papers; omitting
10 it can defeat the motion for sanctions (Peake v. Underwood, supra, 227 Cal.App.4th at 440–445).
11 Plaintiff’s April 17 and April 20 communications were therefore **statutory and orderly steps** that
12 (1) preserve referral issues under rule 3.3 and Business & Professions Code § 6086.7(a)(2) where
13 a pleading may omit controlling adverse authority, and (2) open the twenty-one-day correction
14 window **before** further court resources are spent on briefing built on the omissions above. That
15 is **respect for the law and judicial economy**, not a “threat.” A deficient motion does not be-
16 come adequate because counsel **decline** controlling authorities and then **label** compliance with the
17 Legislature’s and the Supreme Court-adopted Rules of Court as misconduct. The Court cannot be
18 asked to credit that inversion.

19 These are mandatory statutory predicates. Characterizing them as threats inverts the statute. The
20 correct response to a safe-harbor notice is to withdraw or correct the filing; the incorrect response
21 is to file a declaration complaining that the notice was sent.

22 **XI. EVIDENTIARY OBJECTIONS TO THE O’CONNELL DECLARATION**

23 Pursuant to Evidence Code sections 350, 352, 356, 702, and 800, Plaintiff objects to and requests
24 that the Court decline to rely on the following portions of the Declaration of Tyler J. O’Connell:

¶	Objectionable content	Grounds
3	Characterization of “the nature of Plaintiff’s allegations”	Legal conclusion (Evid. Code § 702); argumentative
4	“[E]ntirety of the purported legal theories . . . focus inextricably on Defendant’s protected litigation conduct”	Legal conclusion; ultimate issue on pending anti-SLAPP; improper expert-style opinion (Evid. Code § 800)
7–8	“[N]ot filed on an ex parte basis”; “This is defective”	Legal conclusion (Evid. Code § 702); ignores concurrently filed OST application (see ¶ 13)
10	Characterization of Plaintiff’s § 128.7(c)(1) and § 6086.7(a)(2) notices as threats	Argumentative; legal conclusion; inverts statute
12	Characterization of Plaintiff’s discovery as “gamesmanship” given “Anti-SLAPP motion pending”	Legal conclusion; incomplete — § 425.16(g) stays only discovery “relating to the motion”
Footnote 1	Selective exhibit attachment; omits plaintiff’s meet-and-confer letter and the SAC/TAC attached to the served emails	Rule of completeness (Evid. Code § 356); misleading record

To the extent the Court relies on any portion of the Declaration, Plaintiff requests the Court also receive (a) Plaintiff’s April 16, 2026 meet-and-confer letter to Porter Scott (the document Defendant omits from Exhibit B) and (b) Plaintiff’s concurrently served full merits Opposition to the Special Motion to Strike, both of which are already on the Court’s docket.

XII. CONCLUSION AND RELIEF REQUESTED

For the foregoing reasons, Plaintiff respectfully requests that this Court, exercising its discretion under Code of Civil Procedure sections 473(a)(1) and 576, and consistent with the controlling California Supreme Court authorities — Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Trafton v. Youngblood (1968) 69 Cal.2d 17, 31; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297; Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884 — together with Baral, Park, Kimmel, Action Apartment, Moradi-Shalal, Crowley, Mycogen, Lucido, Kwikset, Zhang, and supporting Court of Appeal authority (Nguyen-Lam, Howard, Atkinson, Kolani, Kyle, Carlton), **enter one** of the following orders, whichever the Court prefers:

1. **Order A (SAC as lodged).** Grant Plaintiff’s Motion for Leave to File a Second Amended Complaint as lodged on April 16, 2026; order the SAC filed as the operative pleading; deny the pending Special Motion to Strike and Demurrer against the FAC as moot; preserve Defendant’s right under CCP § 425.16(f) to file a renewed special motion against the SAC within sixty days.
2. **Order B (consolidated TAC, preferred for judicial economy).** Direct Plaintiff to lodge, on a timeline the Court sets (including by close of business April 30, 2026, if so ordered), a single consolidated Third Amended Complaint in lieu of sequential SAC and TAC proceedings; upon lodging, order the consolidated TAC filed as the operative pleading; deny the pending Special Motion to Strike and Demurrer against the FAC as moot; preserve Defendant’s § 425.16(f) sixty-day renewed-motion right against the consolidated TAC.
3. **Order C (SAC now, TAC on reset calendar).** Grant SAC leave today and set the contingent TAC motion on a regular calendar, allowing the pleading cycle to close by a date certain; deny the pending Special Motion to Strike and Demurrer against the FAC as moot.
4. **In the alternative**, if the Court has any concern about the notice period, **continue** the hearing for the minimum period necessary to cure that concern under CCP § 1005 rather than deny the motion on procedural grounds. Plaintiff consents to any such continuance.
5. **Reserve**, as in all matters before this Court, Plaintiff’s right to seek mandatory attorney fees

1 and costs under CCP § 425.16(c)(1) upon denial of Defendant's Special Motion to Strike, and
2 sanctions under CCP §§ 128.5 and 128.7 on completion of the twenty-one-day safe-harbor
3 window opened on April 17 and April 20, 2026, and separately renewed by the April 16, 2026
4 meet-and-confer letter.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
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Tel: 650.488.7510
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CERTIFICATE OF WORD COUNT (CRC 3.1113(F))

The undersigned hereby certifies, pursuant to California Rules of Court, rule 3.1113(f), that the text of this Reply, including footnotes but excluding the caption page, table of contents, table of authorities, signature block, certificate of word count, and proof of service, contains fewer than 7,000 words as counted by the word-processing software used to prepare it (approximately **4,900 words**).

Dated: April 24, 2026

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per

PROOF OF ELECTRONIC SERVICE (CCP § 1010.6; CRC 2.251)

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in pro per in the above-captioned action. My address is 7624 Melody Drive, Rohnert Park, California 94928. I am over the age of 18. I caused the following document to be served on the parties listed below:

PLAINTIFF’S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT, AND OPPOSITION TO DEFENDANT’S APRIL 23, 2026 OPPOSITION AND DECLARATION

2. On April 24, 2026, I served the foregoing by electronic service pursuant to Code of Civil Procedure section 1010.6 and California Rules of Court, rule 2.251, addressed as follows:

Party / Role	Counsel	Email
CSAA Insurance Exchange (Defendant)	Chad S. Tapp, Esq. (SBN 214898)	ctapp@porterscott.com
CSAA Insurance Exchange (Defendant)	Tyler J. O’Connell, Esq. (SBN 346673)	toconnell@porterscott.com
CSAA Insurance Exchange (Defendant)	Monique Schubert (Legal Assistant)	mschubert@porterscott.com

Service addresses are the electronic service addresses identified by Defendant's counsel on its April 10, April 23, and prior filings in this action.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 24, 2026, at Rohnert Park, California.

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per